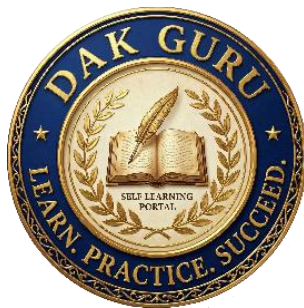




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RIGHT TO INFORMATION

Act, 2005 & Rules, 2012

Comprehensive Study Material for Departmental Examinations

LAW STATED AS ON 7 AUGUST 2026

Incorporating the RTI (Amendment) Act, 2019 & RTI Rules, 2019, and the DPDP Act, 2023 (Section 44(3)) in force from 14 November 2025

DISCLAIMER: *This booklet has been prepared strictly from an examination point of view. Every provision has been checked against the bare text of the Right to Information Act, 2005, the Right to Information Rules, 2012 (GSR 603(E) dated 31 July 2012), the RTI (Amendment) Act, 2019, the RTI Rules, 2019 (GSR 810(E) dated 24 October 2019), and the Digital Personal Data Protection Act, 2023, current as on 7 August 2026. Statutory provisions are subject to amendment, judicial interpretation, and pending litigation. This document is a study aid only and does not constitute legal advice. Readers must independently verify the current position against the Official Gazette and the bare Act/Rules on rti.gov.in before relying on any provision.*

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How to Use This Booklet

This booklet presents the **Right to Information Act, 2005** and the **Right to Information Rules, 2012** in a structured, examination-ready form. Each Chapter of the Act is set out section-by-section in plain language, followed by the Rules and Schedules reproduced in their correct official sequence. Key statutory timelines, fees, and monetary limits are consolidated into ready-reference tables at the end.

Three kinds of highlighted boxes appear throughout:

VERIFIED UPDATE

Marks a provision that has changed from the position commonly printed in older study material, or that older notes state incorrectly. The current, in-force position is stated, with the source instrument and its date.

LEGISLATIVE NOTE

Adds context, cross-references, or an explanatory point that aids understanding but is not itself a change in the law.

EXAM POINTER

Flags a frequently-tested figure, distinction, or common trap.

Currency caution. Statutory figures (fees, salaries, timelines) and the membership of the Second Schedule are amended by notification from time to time. Wherever a value is liable to change, verify it against the Official Gazette or the bare Act/Rules on **rti.gov.in** before relying on it.

Snapshot: What Has Changed (and What Has Not)

The substantive citizen-facing machinery of the RTI Act — the right under Section 3, the request procedure under Sections 6–7, the exemptions architecture, and the two-tier appeal ladder under Sections 19–20 — remains **unchanged** since 2005. Three developments materially affect what older notes say:

1. **RTI (Amendment) Act, 2019 (Act No. 24 of 2019), in force 24 October 2019**, read with the **RTI (Term of Office, Salaries, Allowances ...) Rules, 2019 (GSR 810(E), same date)**. These removed the tenure, age-ceiling, salary and status particulars from Sections 13, 15 and 16 and left them to be fixed by the Central Government by rule:

a **fixed three-year term**, the earlier **65-year and five-year ceilings removed**, salaries **fixed by rule** (no longer pegged to the Election Commissioners), and **one re-appointment** now permissible.

2. **Digital Personal Data Protection Act, 2023 — Section 44(3)**, in force (with the DPDP Rules, 2025) on **14 November 2025**. This **substituted clause (j) of Section 8(1)** of the RTI Act, deleting the internal “larger public interest” override and the Parliament proviso that previously sat inside that clause. The separate public-interest override in **Section 8(2) survives unchanged**. The amendment is under challenge before the Supreme Court; no stay has been granted.
3. **Second Schedule (exempt organisations) expansion**. The list under Section 24 has grown by successive Gazette notifications and now stands at **twenty-six Central organisations** (CBI, NIA and NATGRID added 2011; NCRB 2018), replacing the shorter list in older material.

EXAM POINTER

On the strength of the 2019 changes: the Commissioner term is now **3 years** (not 5), and there is **no longer a 65-year age ceiling** prescribed. Citing “5 years or 65, whichever earlier” as the current rule is the single most common error.



Part A — The Right to Information Act, 2005

Act No. 22 of 2005. Passed by the Lok Sabha on 11 May 2005; assented to by the President on **15 June 2005**. An Act to provide for setting out the practical regime of the right to information for citizens to secure access to information under the control of public authorities, in order to promote transparency and accountability in the working of every public authority.

Chapter I — Preliminary

Section 1 — Short title, extent and commencement

- (1) This Act may be called the **Right to Information Act, 2005**.
- (2) It extends to the **whole of India**.

VERIFIED UPDATE

Older texts read “whole of India except the State of Jammu and Kashmir.” That exception ceased to operate on **31 October 2019**, when the Jammu and Kashmir Reorganisation Act, 2019 came into force and the erstwhile State was reorganised into the Union Territories of Jammu & Kashmir and Ladakh. The RTI Act now applies to the **whole of India** without exception.

- (3) The provisions of **Section 4(1), Section 5(1) and (2), Sections 12, 13, 15, 16, 24, 27 and 28** came into force at once (on enactment, 15 June 2005).
- (4) The **remaining provisions** came into force on the **120th day** of enactment, i.e. **12 October 2005**.

Section 2 — Definitions

In this Act, unless the context otherwise requires, —

- **“Appropriate Government” [2(a)]** — for a public authority established, owned, controlled or substantially financed by the Central Government or a Union Territory administration, the **Central Government**; and for one so connected with a State Government, the **State Government**.
- **“Central Information Commission” [2(b)]** — the Commission constituted under **Section 12(1)**.

- **“Central Public Information Officer” [2(c)]** — the CPIO designated under **Section 5(1)**, and includes a **Central Assistant Public Information Officer** under **Section 5(2)**.
- **“Chief Information Commissioner” / “Information Commissioner” [2(d)]** — the persons appointed under **Section 12(3)**.

“Competent Authority” [2(e)] means the **Speaker** (House of the People / State or UT Assembly) and the **Chairman** (Council of States / State Legislative Council); the **Chief Justice of India** for the Supreme Court; the **Chief Justice of the High Court** for a High Court; the **President** or **Governor** for other authorities created by or under the Constitution; and the **Administrator** under **Article 239** for a Union Territory.

- **“Information” [2(f)]** — any material in any form, including records, documents, memos, e-mails, opinions, advices, press releases, circulars, orders, logbooks, contracts, reports, papers, samples, models and data material held in any electronic form; and information relating to any **private body** that can be accessed by a public authority under any other law in force.
- **“Prescribed” [2(g)]** — prescribed by rules made under this Act by the appropriate Government or the competent authority.

“Public authority” [2(h)] means any authority, body or institution of self-government established or constituted by or under the **Constitution**; by any law made by **Parliament** or a **State Legislature**; or by notification/order of the **appropriate Government** — and includes any body **owned, controlled or substantially financed**, and any **NGO substantially financed**, directly or indirectly, by the appropriate Government.

- **“Record” [2(i)]** — includes any document, manuscript and file; any microfilm, microfiche and facsimile copy; any reproduction of image(s) in such microfilm; and any other material produced by a computer or any other device.
- **“Right to information” [2(j)]** — the right to information accessible under this Act held by or under the control of a public authority, including **inspection** of work, documents and records; taking **notes, extracts or certified copies**; taking **certified samples**; and obtaining information as diskettes, floppies, tapes, video cassettes, other electronic mode, or printouts.
- **“Third party” [2(n)]** — a person other than the citizen making the request, and **includes a public authority**. (Clauses (k)–(m) define the State Commission and its officers, mirroring the Central definitions.)

Chapter II — Right to Information and Obligations of Public Authorities

Section 3 — Right to information

Subject to the provisions of this Act, **all citizens** shall have the right to information.

EXAM POINTER

The right vests in **citizens** only — not in companies or associations as such, and not in foreigners.

Section 4 — Obligations of public authorities (proactive / suo motu disclosure)

(1) Every public authority shall — **[4(1)(a)]** maintain all records duly **catalogued and indexed** and progressively **computerise** and network them; **[4(1)(b)]** publish, **within 120 days** of enactment, the specified categories of particulars (its organisation, functions and duties; powers and duties of officers/employees; decision-making process and channels of supervision and accountability; norms for discharge of functions; rules, regulations, instructions, manuals and records held; a directory of officers/employees; the **monthly remuneration** of each; the **budget** allocated with plans and disbursements; the manner of execution of **subsidy programmes** and beneficiaries; particulars of recipients of concessions/permits; details of information held in electronic form; facilities for obtaining information; and the **names, designations and particulars of the PIOs**); **[4(1)(c)]** publish relevant facts while formulating important policies or announcing decisions affecting the public; and **[4(1)(d)]** provide reasons for its administrative or quasi-judicial decisions to affected persons.

(2)–(4) It shall be a constant endeavour to disclose **suo motu** at regular intervals (including through the internet) so that the public has **minimum resort** to formal requests; all material shall be **widely disseminated**, in local language, in the most effective form, and **free or at print/medium cost**.

LEGISLATIVE NOTE

By successive office memoranda, DoPT has expanded the suo motu agenda to include **procurement details, PPP information, transfer policy and orders, RTI applications and their disposal, CAG & PAC paragraphs, the Citizen's Charter**, discretionary and non-discretionary **grants**, and **foreign tours of the PM / Ministers**; and advises a periodic third-party **transparency audit** of proactive disclosures, with a senior officer (not below Joint Secretary / equivalent) driving compliance.

Section 5 — Designation of Public Information Officers

- (1) Every public authority shall, **within 100 days** of enactment, designate as many officers as **CPIOs / SPIOs** in all administrative units as necessary.
- (2) It shall also designate, at each **sub-divisional / sub-district** level, an officer as **CAPIO / SAPIO** to **receive** applications and appeals and forward them forthwith to the PIO or appellate authority.
- (3) Where an application or appeal is given to a CAPIO / SAPIO, a period of **five days** is **added** to the response time.
- (4)–(5) A PIO may seek the assistance of any other officer (a “**deemed PIO**”), who is then subject to the same responsibilities.

EXAM POINTER

Two different windows: PIOs are designated within **100 days** (Section 5); the proactive-disclosure publication under Section 4(1)(b) is within **120 days**. Older notes sometimes swap these.

Section 6 — Request for obtaining information

- (1) A person seeking information shall make a request in **writing or electronically**, in **English, Hindi or the official language** of the area, with the prescribed fee, to the PIO or CAPIO/SAPIO; where it cannot be made in writing, the PIO shall render reasonable assistance to reduce it to writing.
- (2) The applicant **need not give any reason**, nor any personal details **except those necessary for contacting** them.
- (3) Where the information is held by or is more closely connected with **another public authority**, the request (or the relevant part) shall be **transferred** and the applicant informed; the transfer shall be made **as soon as practicable and in any case within five days**.

Section 7 — Disposal of request

- (1) On receipt, the PIO shall **as expeditiously as possible, and in any case within 30 days**, either provide the information on payment of fee, or reject it for reasons under Sections 8 or 9.

EXAM POINTER

Where the information concerns the **life or liberty of a person**, it must be provided within **48 hours**. Add **five days** to the 30-day (or 48-hour) clock if routed through a CAPIO/SAPIO.

- (2) Failure to decide within time is a **deemed refusal**.
- (3) Where further fee is required, the PIO sends an **intimation** with the calculation; the period between dispatch of intimation and payment is **excluded** from the 30-day computation.
- (4) The PIO shall provide assistance, including appropriate help for **sensorily disabled** persons.
- (5) Information is provided in the form requested unless it would **disproportionately divert resources** or be **detrimental to the safety or preservation** of the record; charges are as prescribed.
- (6) **No fee** is chargeable from persons **Below Poverty Line (BPL)**; and where a public authority **fails to comply with the time limits**, the information is provided **free of charge**.
- (7)–(9) The representation of a **third party** under Section 11 must be considered; on rejection, the PIO communicates the **reasons**, the **appeal period**, and the **particulars of the Appellate Authority**.

Section 8 — Exemption from disclosure of information

(1) Notwithstanding anything in this Act, there shall be **no obligation** to give any citizen

- (a) information whose disclosure would prejudicially affect the **sovereignty and integrity of India**, security, strategic, scientific or economic interests, relations with a foreign State, or lead to incitement of an offence;
- (b) information expressly forbidden to be published by any **court or tribunal**, or whose disclosure may constitute **contempt of court**;
- (c) information whose disclosure would cause a **breach of privilege** of Parliament or a State Legislature;
- (d) **commercial confidence, trade secrets or intellectual property**, unless larger public interest warrants disclosure;

- (e) information available to a person in his **fiduciary relationship**, unless larger public interest warrants disclosure;
- (f) information received in confidence from a **foreign Government**;
- (g) information whose disclosure would **endanger the life or physical safety** of any person, or identify a confidential source for law-enforcement / security purposes;
- (h) information that would **impede the process of investigation**, apprehension or prosecution of offenders;
- (i) **Cabinet papers**, including records of deliberations of the Council of Ministers, Secretaries and other officers (with a proviso for disclosure of decisions and their reasons after the matter is over);
- (j) information which relates to **personal information** — see the Verified Update below for the position after 14 November 2025.

VERIFIED UPDATE

Section 8(1)(j) as amended by Section 44(3) of the DPDP Act, 2023 (in force 14 November 2025). Clause (j) now reads, in substance, simply: “information which relates to personal information.”

The earlier clause (j) carried an **internal override** — personal information could still be disclosed where the PIO / appellate authority was satisfied that the **larger public interest** justified it — followed by a **proviso** that information which cannot be denied to Parliament or a State Legislature shall not be denied to any person. **The 2023 amendment deletes that internal override and proviso.**

What survives: the **separate** public-interest override in **Section 8(2)** is untouched — a public authority may still allow access to otherwise-exempt information where the **public interest in disclosure outweighs the harm**. So the override has moved location (from inside clause (j) to Section 8(2)) rather than vanishing.

Status: the amendment is under challenge in the Supreme Court (petitions by Venkatesh Nayak; The Reporters’ Collective; NCPRI). As of August 2026 the matter has been referred for detailed hearing and **no stay** has been granted; the amended clause is in force. Treat the position as current but contested.

Proviso to 8(1): information which cannot be denied to Parliament or a State Legislature shall not be denied to any person.

(2) Notwithstanding the **Official Secrets Act, 1923** or any exemption under sub-section (1), a public authority **may allow access** if the **public interest in disclosure outweighs the harm** to the protected interests.

(3) Subject to clauses (a), (c) and (i), information relating to any event **20 years** before the request shall be provided; the Central Government's decision on computing the 20-year period is final.

LEGISLATIVE NOTE

Settled practice: **APARs / ACRs** are ordinarily personal information, disclosable to the officer concerned but guarded against third parties; **file notings** are "information" and disclosable, save where a noting itself attracts a Section 8 exemption. Post-2023, requests for public servants' personal data are tested first against the amended clause (j), then against the Section 8(2) public-interest balance.

Section 9 – Grounds for rejection in certain cases

Without prejudice to Section 8, a PIO may reject a request where access would involve an **infringement of copyright** subsisting in a person **other than the State**.

Section 10 – Severability

(1) Where a record contains both exempt and non-exempt information, access is given to **that part which does not contain exempt information** and which can reasonably be severed.

(2) On partial access, the PIO notifies the applicant: that only part is provided after severance; the **reasons**; the **name and designation** of the decision-maker; the **fee** computed; and the **right of review / appeal**.

Section 11 – Third-party information

(1) Where a PIO intends to disclose information relating to, or supplied by, a **third party** and treated as confidential, the PIO shall **within five days** of the request give **written notice** to the third party, inviting a submission on whether to disclose. **Proviso:** except for trade or commercial secrets protected by law, disclosure may be allowed if the **public interest** outweighs any harm to the third party.

(2) The third party shall be given, **within ten days** of receipt of notice, the opportunity to make a representation.

(3) Notwithstanding Section 7, the PIO shall, **within 40 days** of receipt of the request (where notice was given), decide whether to disclose, and notify the third party.

(4) The notice shall state the third party's entitlement to **appeal under Section 19**.

EXAM POINTER

Third-party clock: notice within **5 days**; representation window **10 days**; PIO's decision within **40 days** of the original request (not 30). Remember 5 / 10 / 40.



Chapter III — The Central Information Commission

Section 12 — Constitution of the Central Information Commission

- (1) The **Central Government** shall, by notification, constitute the **Central Information Commission (CIC)**.
- (2) It shall consist of the **Chief Information Commissioner** and such number of **Central Information Commissioners, not exceeding ten**, as deemed necessary.
- (3) They are appointed by the **President** on the recommendation of a committee of — the **Prime Minister** (Chairperson); the **Leader of Opposition in the Lok Sabha**; and a **Union Cabinet Minister** nominated by the Prime Minister.
- (4) Members shall be persons of eminence in public life with wide knowledge and experience in **law, science and technology, social service, management, journalism, mass media or administration and governance**.
- (5) A member shall **not** be an MP or a member of any State/UT Legislature, hold any other **office of profit**, be connected with any **political party**, or carry on any **business or profession**.
- (6) The **headquarters** of the CIC shall be at **Delhi**.

LEGISLATIVE NOTE

Where there is no recognised Leader of Opposition, the leader of the single largest opposition group in the Lok Sabha is treated as such. **Anjali Bhardwaj v. Union of India (2019)** directed transparency in selection, timely filling of vacancies, and publication of selection criteria and shortlists.

Section 13 — Term of office and conditions of service (CIC / ICs)

VERIFIED UPDATE

The most-changed provision in the Act. The original Section 13 fixed a **five-year term (or until age 65, whichever earlier)**, barred re-appointment, and pegged salaries to the Chief Election Commissioner / Election Commissioners. The **RTI (Amendment) Act, 2019 (Act 24 of 2019, in force 24 October 2019)** deleted those particulars and empowered the **Central Government to prescribe** term, salaries, allowances and service conditions by rule.

Current position under the RTI Rules, 2019:

- **Term: three years** from entering office (Rule 3).

- **Age ceiling:** the earlier **65-year ceiling is removed** from the framework.
- **Re-appointment:** now **permissible once** (an IC may be re-appointed / elevated as CIC); the absolute bar in the old Act is gone.
- **Salary (fixed, by rule):** CIC **₹2,50,000** p.m.; IC **₹2,25,000** p.m. If the appointee draws a **pension**, the pay is reduced by the pension amount (and pension-equivalent of other retirement benefits, excluding that of retirement gratuity).

Transitional protection: Commissioners appointed **before** 24 October 2019 continue under the **pre-amendment** terms until they demit office.

(3) Before entering office, the CIC / IC makes an **oath or affirmation** before the President (or a person appointed) in the form in the **First Schedule**; (4) may **resign** to the **President**, or be **removed** under Section 14; (5) salaries and conditions are as **prescribed by the Central Government** and not variable to disadvantage after appointment.

Section 14 – Removal of the CIC / IC

(1) The CIC / IC is removed only by **order of the President** on the ground of **proved misbehaviour or incapacity**, after an inquiry by the **Supreme Court** on a reference by the President.

(2) The President may **suspend** the member during the inquiry.

(3) The President may **by order remove** the member who is adjudged an **insolvent**; is **convicted of an offence involving moral turpitude**; engages in **paid employment** outside office during the term; is, in the President's opinion, **unfit** by reason of **infirmary of mind or body**; or has acquired a **financial or other interest** likely to affect the functions prejudicially.

Chapter IV — The State Information Commission

Section 15 — Constitution of the State Information Commission

- (1) Every **State Government** shall, by notification, constitute the '**(Name of State) Information Commission**'.
- (2) It consists of the **State Chief Information Commissioner (SCIC)** and such number of **State Information Commissioners (SICs)**, **not exceeding ten**, as deemed necessary.
- (3) They are appointed by the **Governor** on the recommendation of a committee of — the **Chief Minister** (Chairperson); the **Leader of Opposition in the Legislative Assembly**; and a **State Cabinet Minister** nominated by the Chief Minister.
- (4)–(5) Eligibility and disqualifications mirror Section 12; (6) the **headquarters** shall be at such place in the State as the State Government specifies.

Section 16 — Term of office and conditions of service (SCIC / SICs)

VERIFIED UPDATE

As with the CIC, the **RTI (Amendment) Act, 2019** removed the tenure, age-ceiling and salary particulars from Section 16 and left them to the **Central Government** (not the State) to prescribe by rule. Under the **RTI Rules, 2019**:

- **Term: three years** (Rule 12).
- **Age-65 ceiling**: removed, as for the CIC.
- **Re-appointment**: one re-appointment / elevation permissible.
- **Salary (fixed, by rule)**: both the SCIC and the SIC receive **₹2,25,000 p.m.** (Rule 14) — the 2019 Rules removed the earlier SCIC = Election Commissioner / SIC = Chief Secretary parity. Pension, if any, is deducted.

Federalism note: that the **Central Government** now fixes the tenure and salary of **State Commissioners** was among the most criticised features of the 2019 amendment.

- (3) Oath / affirmation before the **Governor**; (4) resignation to the **Governor**; (5) salaries and conditions as **prescribed by the Central Government**, not variable to disadvantage after appointment.

Section 17 — Removal of the SCIC / SIC

Removal is by order of the **Governor** on the ground of **proved misbehaviour or incapacity** after a **Supreme Court** inquiry on a reference by the Governor; the Governor may **suspend** the member pending inquiry. The further grounds (insolvency, conviction

for moral turpitude, paid employment, infirmity, prejudicial interest) are the **same as for the CIC** under Section 14(3).

Chapter V — Powers and Functions of the Commissions; Appeal and Penalties

Section 18 — Powers and functions of the Information Commissions

(1) It is the duty of the CIC / SIC to **receive and inquire into a complaint** from any person who — **(a)** could not submit a request because no PIO was appointed, or a CAPIO/SAPIO refused to accept or forward the application/appeal; **(b)** was **refused access**; **(c)** was **not given a response within the time limit**; **(d)** was required to pay a fee considered **unreasonable**; **(e)** believes the information given is **incomplete, misleading or false**; or **(f)** has any other matter relating to requesting or obtaining access.

(2) Where satisfied there are reasonable grounds, the Commission may **initiate an inquiry**.

(3) The Commission has, while inquiring, the **powers of a civil court** under the **Code of Civil Procedure, 1908** (summoning attendance, discovery and inspection, evidence on affidavit, requisitioning public records, issuing summonses).

(4) The Commission may **examine any record**; no such record may be withheld from it on any ground.

EXAM POINTER

Distinguish a **complaint (Section 18)** from a **second appeal (Section 19)**. A complaint addresses systemic failures (no PIO, refusal to receive, unreasonable fee); a second appeal challenges a specific first-appellate decision. The relief of a directed supply of information flows naturally from a Section 19 appeal — a frequently-tested distinction.

Section 19 — Appeal

(1) **First appeal.** A person who receives no decision within time, or is aggrieved by a PIO's decision, may appeal **within 30 days** to an officer **senior in rank** to the PIO (the **First Appellate Authority**); a delayed appeal may be admitted on sufficient cause.

(2) Where the appeal is against a Section 11 order to disclose **third-party** information, the third party may appeal **within 30 days** of the order.

(3) **Second appeal.** A second appeal lies to the **CIC / SIC within 90 days** from the date on which the first-appellate decision **should have been made or was actually received**; a delayed second appeal may be admitted on sufficient cause.

(4) Where the matter relates to **third-party** information, the Commission shall give the third party a **reasonable opportunity of being heard**.

VERIFIED UPDATE

Correcting a common mis-numbering of Section 19:

- **Section 19(5) — onus of proof.** In any appeal, the **burden of proving that a denial was justified rests on the PIO** who denied the request. (Older notes often omit this and mislabel the disposal-time rule as 19(5).)
- **Section 19(6) — time for disposal.** An appeal shall be disposed of **within 30 days** of receipt, or **within an extended period not exceeding 45 days** in total from the date of filing, for reasons recorded in writing.

(7) The **decision of the Commission is binding**.

(8) In its decision the Commission has the power to **require** the public authority to take specified steps to comply (provide information in a particular form; appoint a PIO; publish information; make changes to records management, etc.); **require** the authority to **compensate** the complainant; **impose penalty** under Section 20; or **reject** the application. It shall give notice of its decision, including any right of further appeal, to the complainant and the public authority.

LEGISLATIVE NOTE

The Act fixes a time limit (30 / 45 days) for the **First Appellate Authority** but prescribes **no statutory time limit** for the **Commission** to decide a second appeal. Some High Courts have directed disposal within about 45 days, but this is a judicial direction, not a provision of the Act.

Section 20 — Penalties

(1) Where a PIO has, **without reasonable cause**, refused to receive an application, failed to furnish information within time, **malafidely denied** a request, knowingly given **incorrect, incomplete or misleading** information, destroyed information sought, or obstructed in any manner, the Commission shall impose a penalty of **₹250 per day** until the application is received or information furnished, **subject to a maximum of ₹25,000**.

The PIO must be given a **reasonable opportunity of being heard**, and the **burden of proving reasonable and diligent conduct rests on the PIO**.

(2) The Commission may also **recommend disciplinary action** against a PIO who acts thus persistently and without reasonable cause, under the service rules applicable.

EXAM POINTER

₹250 per day, capped at **₹25,000** — the cap is reached at **100 days**. The penalty falls on the **PIO personally**, not the public authority.

Chapter VI — Miscellaneous

Sections 21–23 — Protection, overriding effect, bar of jurisdiction

Section 21 — Good faith. No suit, prosecution or other legal proceeding shall lie against any person for anything done **in good faith** under the Act or any rule made under it.

Section 22 — Overriding effect. The Act has effect **notwithstanding** anything inconsistent in the **Official Secrets Act, 1923**, or in any other law for the time being in force, or any instrument having effect by virtue of any such law.

Section 23 — Bar of jurisdiction. No court shall entertain any suit, application or proceeding in respect of any order under this Act; such orders may be questioned **only by way of an appeal** under the Act.

Section 24 — Act not to apply to certain organisations

(1) The Act does **not apply** to the **intelligence and security organisations** in the **Second Schedule** (Central-Government organisations), or to information furnished by them to the Government.

First proviso: information on allegations of **corruption** and **human rights violations** is **not excluded**.

Second proviso: where the information relates to **human rights violations**, it is provided **only after the approval of the Central Information Commission**, and (notwithstanding Section 7) **within 45 days** of the request.

(2) The **Central Government** may, by notification, **amend the Second Schedule** by adding or omitting any such organisation; (3) every such notification is **laid before each House of Parliament**.

(4) The Act does **not apply** to such **State** intelligence / security organisations as the **State Government** may, by notification, specify (laid before the State Legislature).

EXAM POINTER

Two carve-outs make even a Second-Schedule body answerable: **corruption** — no pre-approval, normal 30-day clock; **human-rights violations** — **CIC (or SIC) approval + 45 days**.

Sections 25–31 — Monitoring, programmes, rule-making, repeal

Section 25 — Monitoring and reporting. The CIC / SIC prepares an annual **report** on implementation and forwards it to the appropriate Government, which lays it before Parliament / the State Legislature.

Section 26 — Programmes. The appropriate Government may develop **educational programmes** to advance public understanding, encourage public authorities to participate, **train** PIOs, and compile a **user guide** in the official language.

Section 27 — Power of the appropriate Government to make rules (application fee, cost of information; note the tenure/salary items are now governed by the RTI Rules, 2019).

Section 28 — Power of the competent authority to make rules for like matters.

Section 29 — Laying of rules before Parliament / State Legislature. **Section 30 — Power to remove difficulties** by order, **not after two years** from commencement. **Section 31 — Repeal of the Freedom of Information Act, 2002.**

LEGISLATIVE NOTE

RTI Week is observed each year from **5 to 12 October**, marking the anniversary of the Act becoming fully operational on 12 October 2005.

Schedules to the Act

The First Schedule — Form of Oath or Affirmation

[See Sections 13(3) and 16(3)] — for the CIC / IC / SCIC / SIC.

“I,, having been appointed Chief Information Commissioner / Information Commissioner / State Chief Information Commissioner / State Information Commissioner, do **swear in the name of God / solemnly affirm** that I will bear **true faith and allegiance** to the **Constitution of India** as by law established, that I will uphold the **sovereignty and integrity of India**, that I will **duly and faithfully** and to the best of my ability, knowledge and judgment **perform the duties of my office without fear or favour, affection or ill-will**, and that I will uphold the **Constitution and the laws.**”

The Second Schedule — Exempt Intelligence & Security Organisations

[See Section 24(1)] — organisations established by the Central Government to which the Act does not apply (save for corruption / human-rights matters).

VERIFIED UPDATE

The Second Schedule is amended from time to time by Gazette notification under Section 24(2). Older booklets print an 18- or 22-entry list and often mis-include State-level units (e.g. “Special Branch CID, Andaman & Nicobar”), which belong to **State** notifications under Section 24(4), not the Central Second Schedule. The current Central Second Schedule stands at **twenty-six organisations**, below. **Re-verify against the latest list on rti.gov.in before relying on it.**

#	Organisation	#	Organisation
1	Intelligence Bureau (IB)	14	Assam Rifles
2	Research & Analysis Wing (R&AW)	15	Sashastra Seema Bal (SSB)
3	Directorate of Revenue Intelligence (DRI)	16	Directorate General of Income-tax (Investigation)
4	Central Economic Intelligence Bureau (CEIB)	17	National Technical Research Organisation (NTRO)

#	Organisation	#	Organisation
5	Directorate of Enforcement (ED)	18	Financial Intelligence Unit, India (FIU-IND)
6	Narcotics Control Bureau (NCB)	19	Special Protection Group (SPG)
7	Aviation Research Centre (ARC)	20	Defence Research & Development Organisation (DRDO)
8	Special Frontier Force (SFF)	21	Border Roads Development Board (BRDB)
9	Border Security Force (BSF)	22	National Security Council Secretariat (NSCS)
10	Central Reserve Police Force (CRPF)	23	Central Bureau of Investigation (CBI) – 2011
11	Indo-Tibetan Border Police (ITBP)	24	National Investigation Agency (NIA) – 2011
12	Central Industrial Security Force (CISF)	25	National Intelligence Grid (NATGRID) – 2011
13	National Security Guard (NSG)	26	National Crime Records Bureau (NCRB) – 2018

LEGISLATIVE NOTE

Judicial gloss: although CBI is listed, the CIC and the Delhi High Court have held it **cannot withhold information relating to allegations of corruption** behind Section 24. Courts have also read the **human-rights** carve-out to require disclosure in defined situations (e.g. an employee's own service grievance against an exempt body), while declining an over-broad reading.

Part B — The Right to Information Rules, 2012

Notified vide **GSR 603(E) dated 31 July 2012** by the Department of Personnel and Training in exercise of powers under **Section 27** of the RTI Act, **in supersession** of the Central Information Commission (Appeal Procedure) Rules, 2005 and the Right to Information (Regulation of Fee and Cost) Rules, 2005. In force from the date of publication in the Official Gazette (31 July 2012).

VERIFIED UPDATE

These Rules were mis-numbered and partly mis-stated in older notes. The correct official sequence is set out below, checked against the Gazette (GSR 603(E)). Note in particular: **Rule 5 is the BPL fee-exemption** (not an “electronic-format fee” rule); **Rule 7 is the appointment of the Secretary to the Commission** (there is **no** “Nodal Officer / Deputy Secretary” rule in the 2012 Rules); and the hearing-notice requirement in **Rule 12(1) is seven clear days** — not “Rule 11 / fifteen days.”

Rules 1–7 — Title, Definitions, Fees, Payment and Secretary

Rule 1 — Short title and commencement

(1) These rules may be called the **Right to Information Rules, 2012**. (2) They come into force on the date of their publication in the Official Gazette (**31 July 2012**).

Rule 2 — Definitions

“**Act**” = the RTI Act, 2005 (22 of 2005); “**Commission**” = the Central Information Commission under Section 12(1); “**First Appellate Authority**” = an officer in the public authority senior in rank to the CPIO to whom a Section 19(1) appeal lies; “**Registrar**” = an officer of the Commission so designated, including Additional / Joint / Deputy Registrar; “**Section**” = a section of the Act. Words not defined here have the meaning assigned in the Act.

Rule 3 — Application Fee

An application under Section 6(1) shall be accompanied by a fee of **rupees ten**, and shall **ordinarily not contain more than five hundred words**, excluding annexures, containing the address of the CPIO and of the applicant.

Proviso: no application shall be **rejected only on the ground that it contains more than five hundred words**.

EXAM POINTER

Two points examiners test on Rule 3: the **500-word** guideline (“ordinarily”, and never a ground for rejection by itself), and the fee of **₹10**. Older notes sometimes drop the 500-word proviso.

Rule 4 — Fees for providing information

Fee for providing information under Section 4(4) and Section 7(1) and (5) shall be charged at the following rates —

- (a) rupees **two** for each page in **A-3 or smaller** size paper;
- (b) actual cost or price of a **photocopy in larger** size paper;
- (c) actual cost or price for **samples or models**;
- (d) rupees **fifty per diskette or floppy**;
- (e) for a **publication**, the price fixed for it; or rupees **two per page** of photocopy for extracts;
- (f) for **inspection of records**, **no fee for the first hour**, and rupees **five** for each subsequent hour (or fraction thereof); and
- (g) so much of the **postal charge** involved in supply of information **as exceeds fifty rupees**.

VERIFIED UPDATE

Rule 4 has **seven clauses (a)–(g)**. Older notes commonly omit clause (g) — postal charges exceeding ₹50 — and sometimes wrongly split the A-3 rate as “A-4/A-3.” The Gazette wording is “in A-3 or smaller size paper.”

Rule 5 — Exemption from Payment of Fee

No fee under Rule 3 and Rule 4 shall be charged from any person who is **below poverty line**, provided a copy of the **certificate** issued by the appropriate Government is submitted along with the application.

VERIFIED UPDATE

This is the correct subject of **Rule 5 — the BPL exemption**. Older notes that head Rule 5 as “Fees for information in electronic format” are wrong; the electronic-media rate is clause (d) of Rule 4, not a separate Rule 5.

Rule 6 — Mode of Payment of fee

Fees may be paid — (a) in **cash**, to the public authority or to its CPIO, against a proper receipt; (b) by **demand draft, banker's cheque or Indian Postal Order** payable to the **Accounts Officer** of the public authority; or (c) by **electronic means** to the Accounts Officer, where that facility is available.

Rule 7 — Appointment of Secretary to the Commission

The **Central Government** shall appoint an officer **not below the rank of Additional Secretary** to the Government of India as **Secretary to the Commission**.

VERIFIED UPDATE

Rule 7 concerns the **Secretary to the Commission** only. There is **no** "Nodal Officer" or "Deputy Secretary" rule in the RTI Rules, 2012 — any such statement in older notes is incorrect. (Nodal / Transparency Officers arise from DoPT suo-motu-disclosure office memoranda under Section 4, not from these Rules.)

Rules 8–15 — Second Appeal and Procedure before the Commission

Rule 8 — Appeal to the Commission

Any person aggrieved by an order of the **First Appellate Authority**, or by **non-disposal** of the appeal by the FAA, may file a **second appeal to the Commission** in the format in the **Appendix**, accompanied by the following documents, duly authenticated and verified by the appellant —

- (i) a copy of the **application** submitted to the CPIO;
- (ii) a copy of the **reply**, if any, from the CPIO;
- (iii) a copy of the **appeal** to the First Appellate Authority;
- (iv) a copy of the **order**, if any, from the First Appellate Authority;
- (v) copies of **other documents** relied upon and referred to in the appeal; and
- (vi) an **index** of the documents referred to in the appeal.

Rule 9 — Return of Appeal

An appeal may be **returned** to the appellant, if it is not accompanied by the documents specified in **Rule 8**, for removing the deficiencies and filing the appeal complete in all respects.

Rule 10 — Process of appeal

(1) On receipt of an appeal, if the Commission is not satisfied it is a **fit case to proceed**, it may — after giving the appellant an **opportunity of being heard** and recording its reasons — **dismiss** the appeal. **Proviso:** no appeal shall be dismissed only because it is not in the specified format, if accompanied by the documents specified in Rule 8.

(2) The Commission shall **not consider** an appeal unless satisfied that the appellant has **availed of all the remedies** available under the Act.

(3) For sub-rule (2), a person is deemed to have availed of all remedies — **(a)** if the FAA (or other competent person) had made a **final order** on the appeal; or **(b)** where **no final order** has been made and a period of **forty-five days** from the date the appeal was preferred **has elapsed**.

Rule 11 — Procedure for deciding appeals

The Commission, while deciding an appeal, may —

- (i) receive **oral or written evidence on oath or affidavit** from a concerned or interested person;
- (ii) peruse or inspect **documents, public records or copies**;
- (iii) inquire, through an authorised officer, into further details or facts;
- (iv) hear the **CPIO, CAPIO or the First Appellate Authority**, or the person against whose action the appeal is preferred;
- (v) hear the **third party**; and
- (vi) receive **evidence on affidavits** from the CPIO, CAPIO, FAA, and such other person or the third party.

Rule 12 — Presence of the appellant before the Commission

(1) The appellant shall be **informed of the date of hearing at least seven clear days before** that date.

(2) The appellant may be present **in person, through a duly authorised representative, or through video conferencing** where that facility is available.

(3) Where the Commission is satisfied that circumstances exist due to which the appellant is unable to attend, it may afford the appellant **another opportunity of being heard** before a final decision, or take any other appropriate action.

VERIFIED UPDATE

This is the rule most often mis-stated. The correct position is **Rule 12(1)** and the notice period is **seven (7) clear days** — not “Rule 11” and not “fifteen days.” **Video conferencing** is expressly provided for in Rule 12(2).

Rule 13 — Presentation by the Public Authority

The public authority may **authorise any of its officers** to present its case.

Rule 14 — Service of notice by Commission

The Commission may issue notice by name, served in any of the following modes — (i) service by the **party itself**; (ii) by **hand delivery (dasti)** through a Process Server; (iii) by **registered post with acknowledgement due**; or (iv) by **electronic mail** where an electronic address is available.

VERIFIED UPDATE

Rule 14 lists **four** modes of service. The modes are as above; older notes that add “speed post / fax” or “service through the Nodal Officer” do not match the 2012 Rules text.

Rule 15 — Order of the Commission

The order of the Commission shall be **in writing** and **issued under the seal of the Commission**, duly **authenticated by the Registrar** or any other officer authorised by the Commission for this purpose.

Appendix — Format of Appeal to the Commission

[See Rule 8] — the second-appeal memorandum to the Commission contains the following particulars —

1. Name and address of the **appellant**.
2. Name and address of the **CPIO to whom the application was addressed**.
3. Name and address of the **CPIO who gave the reply** to the application.
4. Name and address of the **First Appellate Authority who decided the first appeal**.
5. Particulars of the **application**.
6. Particulars of the **order(s)** (including number, if any) against which the appeal is preferred.
7. **Brief facts** leading to the appeal.

8. **Prayer or relief** sought.
9. **Grounds** for the prayer or relief.
10. **Any other information** relevant to the appeal.
11. **Verification / authentication** by the appellant.

VERIFIED UPDATE

The Appendix in the 2012 Rules is the **Format of Appeal to the Commission (second appeal)**, with the eleven particulars above. There is a common confusion with the separate **first-appeal** format; the second-appeal format expressly distinguishes item 2 (CPIO addressed) from item 3 (CPIO who replied) and item 4 (the FAA who decided the first appeal).



Part C — Service Conditions of Information Commissioners

Reproduced from **The Right to Information (Term of Office, Salaries, Allowances and Other Terms and Conditions of Service of Chief Information Commissioner, Information Commissioners in the Central Information Commission, State Chief Information Commissioner and State Information Commissioners in the State Information Commission) Rules, 2019** — notified vide GSR 810(E) dated 24 October 2019 under Section 27(2)(ca) and (cb) of the Act.

VERIFIED UPDATE

These 2019 Rules are a **separate instrument** from the RTI Rules, 2012 and govern **only** the tenure, pay and service conditions of Information Commissioners. They apply to Commissioners **appointed on or after 24 October 2019**; earlier appointees retain their pre-2019 terms. The 2012 Rules on fees and appeals are **unaffected** by them.

Chapter III — CIC and Central Information Commissioners

Rule 3 — Term of office: the CIC or an IC holds office for **three years** from entering office.

Rule 4 — Retirement from parent service: a serving Central/State Government officer appointed to the Commission is **deemed to have retired** from that service with effect from the date of appointment.

Rule 5 — Pay: CIC ₹2,50,000 (fixed) p.m.; IC ₹2,25,000 (fixed) p.m. Pay is **reduced by any pension** drawn (including commuted portion and pension-equivalent of other retirement benefits, excluding pension-equivalent of retirement gratuity), and similarly reduced for retirement benefits from a Central/State PSU.

Rules 6–11 — Allowances and facilities: DA at the rate admissible to an officer of equivalent pay in the Central Government (Rule 6); **leave** as per such equivalence, with the **President** as leave-sanctioning authority for the CIC and the **CIC** for an IC (Rule 7); **encashment of 50% of earned leave** on completion of tenure (Rule 8); **medical** facilities under CGHS, or the **Central Services (Medical Attendance) Rules, 1944** where CGHS is not operational (Rule 9); **general-pool accommodation** on licence fee, or **HRA** if not availed (Rule 10); and **LTC, TA and DA** as admissible to an officer of equivalent pay (Rule 11).

Chapter IV — SCIC and State Information Commissioners

Rule 12 — Term of office: the SCIC or an SIC holds office for **three years** from entering office.

Rule 13 — Retirement from parent service: as for the Central level, deemed retirement on appointment.

Rule 14 — Pay: SCIC ₹2,25,000 (fixed) p.m.; SIC ₹2,25,000 (fixed) p.m., with the same pension-deduction rules.

Rules 15–20 — Allowances and facilities: DA at the rate admissible to an officer of equivalent pay in the **State** Government (Rule 15); **leave** with the **Governor** as sanctioning authority for the SCIC and the **SCIC** for an SIC (Rule 16); **50% earned-leave encashment** on completion of tenure (Rule 17); **medical** facilities (CGHS / 1944 Rules / State-equivalent) (Rule 18); **accommodation** on licence fee or **HRA** (Rule 19); and **LTC, TA and DA** as admissible to an officer of equivalent State-Government pay (Rule 20).

Chapter V — Residuary Provisions

Rule 21 — Residuary: any service condition not expressly provided is **referred to the Central Government**, whose decision is binding. **Rule 22 — Power to relax:** the Central Government may relax any provision for any class or category of persons. **Rule 23 — Interpretation:** any question on interpretation is **referred to the Central Government** for decision.

Ready Reference

Key Statutory Timelines & Limits

Event / Action	Time Limit	Provision
Standard response by PIO	30 days	S. 7(1)
Life or liberty of a person	48 hours	Proviso to S. 7(1)
Add-on where routed via ACPIO / ACAPIO	+ 5 days	S. 5(2)
Transfer of application to correct PA	Within 5 days	S. 6(3)
Third-party notice by PIO	Within 5 days	S. 11(1)
Third party's representation window	10 days	S. 11(2)
PIO's decision where 3rd-party notice given	Within 40 days	S. 11(3)
First appeal — filing	30 days from decision / due date	S. 19(1)
First appeal — disposal by FAA	30 days; max 45 days (reasons)	S. 19(6)
Second appeal — filing (CIC / SIC)	90 days	S. 19(3)
Human-rights info from exempt body	45 days (after CIC approval)	2nd proviso, S. 24(1)
Commission may proceed if FAA silent	45 days from first appeal	Rule 10(3)(b), 2012
Hearing notice to appellant	At least 7 clear days	Rule 12(1), 2012
Penalty on PIO for delay	₹250/day, max ₹25,000	S. 20(1)
Removal of difficulties — outer limit	2 years from commencement	S. 30

Fees, Charges & Fixed Salaries

Item	Amount / Limit	Authority
RTI application fee	₹10	Rule 3, 2012
Application length (ordinarily)	≤ 500 words (not a rejection ground)	Rule 3, 2012
Photocopy (A-3 or smaller), per page	₹2	Rule 4(a)
Larger-size paper / sample / model	Actual cost	Rule 4(b)–(c)
Diskette or floppy, per unit	₹50	Rule 4(d)
Inspection — first hour	Free	Rule 4(f)
Inspection — each subsequent hour	₹5	Rule 4(f)
Postal charge recovered	Only the excess over ₹50	Rule 4(g)
BPL applicant	No fee (with certificate)	Rule 5, 2012
Where time limit breached	Free of charge	S. 7(6)
Penalty on PIO, per day / maximum	₹250 / ₹25,000	S. 20(1)
CIC — pay	₹2,50,000 p.m.	Rule 5, 2019
IC / SCIC / SIC — pay	₹2,25,000 p.m.	Rules 5 & 14, 2019

At-a-Glance: The RTI Architecture

Feature	Central level	State level
Commission	Central Information Commission	State Information Commission
Constituted by	Central Government (S. 12)	State Government (S. 15)
Composition	CIC + up to 10 ICs	SCIC + up to 10 SICs
Appointed by	President	Governor
Selection committee chair	Prime Minister	Chief Minister
Other committee members	LoP (Lok Sabha) + Union Cabinet Minister	LoP (Assembly) + State Cabinet Minister

Feature	Central level	State level
Headquarters	Delhi	As specified by the State
Term (Rules 2019)	3 years	3 years
Pay — Chief (Rules 2019)	₹2,50,000 p.m.	₹2,25,000 p.m.
Pay — Member (Rules 2019)	₹2,25,000 p.m.	₹2,25,000 p.m.
Removal	President (after SC inquiry)	Governor (after SC inquiry)

Primary Sources Relied Upon

Provisions and updates were verified against the following primary sources (status as on 7 August 2026):

- **The Right to Information Act, 2005** (Act No. 22 of 2005) — bare Act, rti.gov.in / DoPT.
- **The Right to Information Rules, 2012** — GSR 603(E) dated 31 July 2012 (F. No. 1/35/2009-IR).
- **The Right to Information (Amendment) Act, 2019** (Act No. 24 of 2019), in force 24 October 2019.
- **The RTI (Term of Office, Salaries, Allowances ...) Rules, 2019** — GSR 810(E) dated 24 October 2019 (F. No. 1/5/2019-IR).
- **The Digital Personal Data Protection Act, 2023** — Section 44(3), in force with the DPDP Rules, 2025 on 14 November 2025 (Gazette of India).
- **The Jammu and Kashmir Reorganisation Act, 2019** (extension of the RTI Act to the whole of India w.e.f. 31 October 2019).
- DoPT office memoranda on proactive (suo motu) disclosure; Second Schedule notifications under Section 24 (latest list on rti.gov.in).

LEGISLATIVE NOTE

Pending litigation to watch: the constitutional challenge to **Section 44(3) of the DPDP Act, 2023** (and the consequent amendment of Section 8(1)(j)) is before the Supreme Court. Should the Court stay or read down the provision, the personal-information exemption position above would change — re-verify before the examination cycle.

